

BLAKE, et al v SAN ANDREAS SNF OPERATIONS, LLC, et al

24CV47533

PLAINTIFF’S MOTION TO STRIKE ANSWER

This civil action involves claims for elder abuse, neglect, and wrongful death brought by Linda Cooper, Barry Blake, Arthur Blake, Virginia Blake (as successor in interest to Glenn Blake), as individuals and as successors in interest to their mother, Decedent Thelma Blake (“Decedent”) (collectively, “Plaintiffs”) against multiple Defendants.

Now before the Court is Plaintiff’s motion to strike the Answer filed by Avalon Care Center – San Andreas, LLC, Avalon Care LLC, Avalon Health Care, Inc., Avalon Holding, Inc., Avalon Health Care Management, Inc. and Charles Kirton (“Avalon Defendants.”)

I. Factual and Procedural Background

A. Background Facts

At all relevant times, the Decedent was a 96-year-old woman who qualified as an “elder” under Welfare and Institutions Code section 15610.27. (Complaint ¶ 10.) Defendant San Andreas SNF Operations LLC dba Golden San Andreas Care Center (“Care Center”) was in the business of providing continuous skilled nursing care as a twenty-four-hour facility as defined in 72103 of Title 22 of the California Code of Regulations and California Health and Safety Code section 1250(c). (*Id.* ¶ 15.) On May 11, 2023, Decedent was admitted to Care Center for daily custodial care. (Declaration of Paige Farris (“Farris Decl.”) ¶ 2.) The Complaint alleges that while Decedent was a resident of the Care Center she was neglected, and that Care Center failed to monitor, diagnosis and treat a urinary tract infection (“UTI”) which eventually contributed to Decedent’s death. (*Id.* ¶ 28.)

Plaintiff alleges that at all relevant times, Care Center was collectively owned by a myriad of businesses, all of which are named as Defendants herein, including CaFive Operations Holdings, LLC; CH CaFive Holdings LLC, IY Evergreen CA Holdings, LLC (collectively “Evergreen Defendants”) and the Avalon Defendants. Plaintiff alleges that

the Evergreen Defendants and Avalon Defendants were “joint venturers in the enterprise of owning, operating, and managing” the Care Center. (Complaint ¶ 19.) Plaintiff alleges that the Evergreen Defendants and Avalon Defendants “owned, operated, and managed multiple skilled nursing facilities in California and are the alter egos of each other and/or a single enterprise” (*Id.* ¶ 21), that all of these entities and their subsidiaries had the same corporate office and management team and used the same management company to operate each separate care facility (*Ibid.*), and that the various Defendants utilized management practices, funding schemes, financial diversions and other tactics to understaff Care Center to the detriment of the patients.

Plaintiff filed the Complaint on August 6, 2024. On September 16, 2024, the GRSM law firm filed an Answer on behalf of the Evergreen Defendants. On October 3, 2024, the GRSM law firm filed an Answer on behalf of the Avalon Defendants. At some point, the GRSM law firm notified Plaintiff’s counsel that they did not represent the Avalon Defendants and did not have authority to file an Answer on their behalf. (*Ibid.*) It appears this took place about one year later in September of 2025. (Farris Reply Decl. ¶ 3.) On March 10, 2026, Plaintiffs’ counsel emailed counsel at GRSM reiterating the conversation about not representing the Avalon Defendants and asking that the Answer be withdrawn. (Farris Decl. ¶ 5, Ex. B.) For the next few weeks Plaintiffs’ counsel continued to correspond with GRSM seeking confirmation that the Answer would be withdrawn as to the Avalon Defendants without results. (*Ibid.*)

II. Legal Standard and Discussion

A motion to strike lies either to strike: (1) any “irrelevant, false or improper matter inserted in any pleading”; or (2) any pleading or part thereof “not drawn or filed in conformity with the laws of this state, a court rule or order of court.” (CCP § 436.) A motion to strike may also be used to strike allegations related to an improper request for relief. (*Saberi v. Bakhtiari* (1985) 169 Cal.App.3d 509, 517.) A motion to strike can be used to attack the entire pleading, or any part thereof—i.e., even single words or phrases. (*Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 40.)

“There is a presumption that an attorney has authority to appear for any person for whom he professes to act [citation], but this presumption is disputable [citation].” (*Wilson v. Barry* (1951) 102 Cal.App.2d 778, 780.) Here there is ample evidence that the law firm of GRSM did not represent the Avalon Defendants at the time they filed an Answer on their behalf. First, attorney Lindsay Romano with GRSM avers “At the time of the filing of the Answer on behalf of the Avalon Defendants, GRSM had not yet formally been retained to act on behalf of the Avalon Defendants or Avalon Care Center—San Andreas, LLC.” (Declaration of Lindsay Romano (“Romano Decl.”) ¶ 12.) Nonetheless, they filed an Answer on behalf of the Avalon Defendants in October and December of 2024. (*Id.*, ¶¶ 8-11, Exs. C and D.)

On March 10, 2026, Plaintiffs' counsel sent email correspondence specifically asking if the Answer filed by Avalon would be withdrawn since GRSM did not represent them. (Farris Decl. ¶ 5, Ex. B.) To that very specific email, GRSM attorney Romano responded, "Yes, we can do that." (*Ibid.*) Thus, even two years after filing an Answer on behalf of the Avalon Defendants – which represented to the Court the authority to represent those defendants – GRSM continued to appear to agree that it did not have authority to file that Answer in 2024.

While the issue of representation is somewhat convoluted, including payment by the GRSM law firm for first appearance fees on behalf of all defendants. However, the key for the Court is paragraph 17 of the Declaration of Lindsey Romano where she expresses "On April 14, 2026, via email, I advised Counsel for Plaintiffs that GRSM **now** represents the Avalon Defendants". [Emphasis added.] This makes clear that GRSM did *not* have authority to file an Answer on behalf of the Avalon Defendants in 2024, continued to express to Plaintiffs' counsel in September of 2025 that they were not representing the Avalon Defendants (Farris Reply Decl. ¶ 3), and continued to represent to Plaintiff's counsel that this was true as late as March of 2026. Plaintiff's counsel avers that she relied – to her client's detriment – on GRSM's representation that it represented and spoke for the Avalon Defendants. (Farris Reply Decl. ¶ 2). Had Plaintiff's counsel been aware that the Avalon Defendants' Answer was filed without authority, she would have moved for default against those defendants. (*Ibid.*) Plaintiffs' counsel was reasonably operating under the belief that the Avalon Defendants were *not* represented by GRSM when she provided the settlement demand on behalf of her clients only as to the Evergreen defendants.

The Court is somewhat baffled that GRSM would file an Answer and proffer first appearance fees on behalf of entities that they were not retained to represent. (Cal. Bus. & Prof. Code §6104.) It is further concerned that GRSM allowed Plaintiff's counsel to believe it did not represent the Avalon Defendants throughout the course of this litigation and only purported to have an attorney-client relationship once a settlement demand had been made and purportedly accepted.

The motion to strike the answers filed by the Avalon Defendants is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the proposed Order submitted by Plaintiff.

JEFFERSON CAPITAL SYSTEMS, LLC v SCOTT

25CF15410

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

This is a common counts action brought by Jefferson Capital Systems, LLC ("Plaintiff") against Steven Scott and Does 1-5 ("Defendant.")

Now before the Court is Plaintiff's motion for judgment on the pleadings.

The motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the